

26STCV06728 26STCV06728

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV06728 Hearing Date: August 12, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: August

12, 2026

CASE NAME: Vilma

Orellana v. Music Express, Inc.

CASE NO.: 26STCV06728

MOTION

TO STRIKE

MOVING PARTY: Defendant

Music Express, Inc.

RESPONDING PARTY(S): Plaintiff Vilma Orellana

REQUESTED RELIEF:

1. An

order striking various portions of the complaint pertaining to punitive damages.

TENTATIVE RULING:

1. Motion

to strike is GRANTED with leave to amend;

2. Plaintiff

shall file her amended complaint within 21 days of this ruling.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On March 2, 2026, Plaintiff Vilma Orellana (Plaintiff) filed a complaint against Defendant Music Express, Inc. (Defendant) with six causes of action for: (1) discrimination in violation of FEHA; (2) retaliation in violation of FEHA; (3) failure to prevent discrimination, harassment and retaliation in violation of FEHA; (4) failure to provide reasonable accommodation in violation of FEHA; (5) failure to engage in a good faith interactive process in violation of FEHA; and (6) wrongful termination in violation of public policy.

According to the complaint, Plaintiff, a Hispanic billing clerk with a documented kidney-related disability, took approved FMLA leave from February to May 2024 and repeatedly provided medical documentation to Defendant. Upon returning and requesting additional medically related time off, her requests were denied while similarly situated white, non-Hispanic employees were allegedly granted such accommodations, and she was told her job was no longer protected. Five days after being denied sick time to take her son to a doctor's appointment, she was terminated for "prolonged absence and schedule adjustments," which she alleges were pretextual and motivated by discrimination and retaliation.

On May 27, 2026, Defendant filed the instant motion to strike. On July 30, 2026, Plaintiff filed an opposition. On August 5, 2026, Defendant filed a reply and a notice of errata correcting the request to strike paragraph 40, 53, and 84 as paragraphs 42, 54, and 87.

LEGAL STANDARD:

Meet and Confer

Prior to filing a demurrer, the demurring party is required to satisfy their meet and confer obligations pursuant to Code of Civ. Proc.

§430.41, and demonstrate that they so satisfied their meet and confer obligation by submitting a declaration pursuant to Code of Civ. Proc. §430.41(a)(2) & (3). The meet and confer requirement also applies to motions to strike. (CCP § 435.5.)

Here, the parties met and conferred via telephone on May 22, 2026. (Declaration of Daniel Ho ¶ 5.) This requirement is therefore met.

Motion to Strike

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (CCP § 436(a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Id., § 436(b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Id. § 437.) “When the defect which justifies striking a complaint is capable of cure, the court should allow leave to amend.” (Vaccaro v. Kaiman (1998) 63 Cal.App.4th 761, 768.)

ANALYSIS:

Defendant moves to strike the following portions of the complaint:

1. Paragraph

31;

2. Paragraph

42;

3. Paragraph

54;

4. Paragraph

60;

5. Paragraph

68;

6. Paragraph

76;

7. Paragraph

87; and

8. Prayer

for Relief paragraph 2: “for punitive damages, pursuant to Civil Code §§ 3294 in amounts sufficient to punish Defendants for the wrongful conduct alleged herein and to deter such conduct in the future.”

Defendant contends Plaintiff insufficiently alleged facts supporting punitive damages because there are no factual allegations of ratification or authorization by a qualifying corporate officer of the corporate defendant.

Plaintiff argues Defendant incorrectly demands she plead her evidence supporting her claim for punitive damages before conducting any discovery. She adds that the complaint provides dated, specific, factual allegations of wrongdoing that, taken as true, support a reasonable inference that Defendant’s decisionmakers acted with knowledge of Plaintiff’s protected medical condition, treated her differently because of her race and disability, and punished her for exercising rights.

Defendant replies that Plaintiff failed to plead specific facts demonstrating authorization or ratification. In fact, there is no employee identified in the complaint at all even though she alleges she was told she could not use her sick leave and informed of the reasons for her termination.

To obtain punitive damages, a plaintiff must plead sufficient facts in support of punitive damages. (See *Hilliard v. A.H. Robins Co.* (1983) 148 Cal.App.3d 374, 391-92.) In addition, punitive damages are allowed only where “it is proven by clear and convincing evidence that the defendant has been guilty of oppression, fraud, or malice.” (Civ. Code, § 3294(a).) Courts have viewed despicable conduct as conduct “so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people. (*Scott v. Phoenix Schools, Inc.*, (2009) 175 Cal.App.4th 702, 715.) Further, Civil Code § 3294(c) provides the definition of malice, oppression, and fraud. Malice is “conduct which is

intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.” (Ibid.) Oppression is “despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person's rights.” (Ibid.) Fraud is “an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.” (Ibid.)

Subsection (b) of Civil Code § 3294 states:

“

An employer

shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.”

Here, Plaintiff insufficiently alleged facts supporting punitive damages. Notably absent are allegations by any individuals at all. (See, e.g., Compl. ¶¶ 19, 20, 21 [Plaintiff was informed that any absences . . . would jeopardize her employment.” and “Plaintiff was told . . . her ‘job was no longer protected.’”], denied requests, “was told”) Thus, this request is insufficiently plead because it does not allege conduct by anyone, let alone a managing agent or corporate officer. (See, e.g., *Nargizyan v. State Farm General Ins. Co.* (2026) 120 Cal.App.5th 581, 604-605 [discussing managing agents].) It is a curable defect, though.

Accordingly, the court GRANTS Defendant's motion to strike with leave to amend.

CONCLUSION:

For

the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

to strike is GRANTED with leave to amend;

2. Plaintiff

shall file her amended complaint within 21 days of this ruling.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: August 12, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court